



Knowledgeable Staff Unparalleled Solutions

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July 20, 2017

SUBCONTRACT NO. JMA/ Space Metrics Inc.-17-D-00013

Between

**JMA Solutions, LLC
600 Maryland Ave SW, Suite 400 E
Washington, D.C. 20024
(202) 465-8200**

And

**Space Metrics Inc.
P.O. Box 23421
Washington, D.C. 20026
(240) 393 - 2816**

Subcontract Type:	Time and Material
Services:	Technical Support
Prime Contract No.:	DTFAWA-17-D-00013
Subcontract No.:	JMA/Space Metrics Inc-17-D-00013
Subcontract Value:	\$ 3,542.042.16
Funded Travel Value:	\$ 3,000.00
Funded Value:	\$ 865,900.40
Period of Performance:	
Base Year	08 June 2017 – 07 June 2018
Option Year 1	08 June 2018 – 07 June 2019
Option Year 2	08 June 2019 – 07 June 2020
Option Year 3	08 June 2020 – 07 June 2021

**SUBCONTRACT AGREEMENT
PART 1 - SCHEDULE**

INTRODUCTION

This Subcontract Agreement ("Agreement") is entered into on 08 June 2017 ("Effective Date"), by and between JMA Solutions, LLC ("JMA") and the undersigned subcontractor ("Subcontractor").

Subcontractor's efforts under this Agreement will be part of JMA Solutions' Contract DTFAWA-17-D-00013, which has been issued by the Federal Aviation Administration ("Client"). Subcontractor will perform the work, defined in Part 5.0, Statement of Work ("SOW"), in accordance with the terms and conditions of this Agreement.

This Agreement consists of this signature page and the following sections:

- Part 1.0, Schedule
- Part 2.0, General Provisions
- Part 3.0, Government Provisions
- Part 4.0, Special Provisions
- Part 5.0, Statement of Work
- Part 6.0, Period of Performance
- Part 7.0, Time and Material Rates and Labor Categories

This Agreement constitutes the entire agreement between the undersigned parties and supersedes any previous communications, representations, or agreements whether verbal or written with respect to the subject matter of this Agreement. This Agreement may only be modified or revised in writing signed by JMA and Subcontractor.

Each party acknowledges that they have read this entire Agreement and, with the full power and authority to execute this Agreement, agrees to perform in accordance with the terms and conditions contained in this Agreement.

JMA SOLUTIONS

Yolanda Morgan
Subcontracts Manager
600 Maryland Ave. SW, Suite 400 E
Washington, D.C. 20024
202-465-8222
yolanda@jma-solutions.com

SPACE METRICS INC

Samuel N. Trotman
President
P.O. Box 23421
Washington, D.C. 20026
240-393-2816
strotman@spacemetricsinc.com

PART 1 - SCHEDULE
TIME AND MATERIALS

ARTICLE 1.1 SCOPE OF WORK

Subcontractor will, unless the parties agree in writing otherwise, furnish the personnel, materials, equipment and property necessary to perform the work identified in The SOW, of this Agreement. Subcontractor will comply with all limitations and restrictions in the prime contract ("Prime Contract"). Subcontractor will provide to JMA any notices that JMA may reasonably require to fulfill JMA's notice obligations to the Client.

ARTICLE 1.2 SUPPLIES, SERVICES, AND PRICES

Subcontractor will render services on the Time and Material basis defined in the SOW.

ARTICLE 1.3 PERIOD OF PERFORMANCE

The Period of Performance for this effort is 08 June 2017 through 06 June 2020 ("Term") unless earlier terminated or extended as provided in this Agreement.

ARTICLE 1.4 PROJECT POINT OF CONTACT (POC)

Subcontractor must designate a primary Point of Contact ("POC") for the project immediately after award. The POC will act as Subcontractor's representative to initially address any contract support issues including, but not limited to:

- 1) Ensuring Subcontractor's team is provided all IT support, office space and supplies as required to support the Client.
- 2) Monitoring labor hours specified in the SOW for their specified labor categories and ensuring those hours are not exceeded unless authorized by the JMA Project Manager ("PM").
- 3) Ensuring personnel attend project related team meetings as scheduled by the PM.
- 4) Using JMA's prime contractor template for all deliverables and ensuring those are reviewed by the PM before submission.

ARTICLE 1.5 DELIVERABLE TEMPLATES

Subcontractor must use templates that JMA designates for all deliverables and correspondence to the Client. If Subcontractor deviates from these templates, JMA may terminate, or require Subcontractor to remove the deviating employee from work on, this Agreement.

ARTICLE 1.6 OPTION(s) TO EXTEND

JMA may unilaterally extend the Term by sending written notice to Subcontractor in the form of a modification to the Agreement before the end of the Term. If JMA extends the Term, each extension will be a numbered option period ("Option Period") and the terms or conditions of the then-current Agreement will apply during each Option Period.

ARTICLE 1.7 SUBCONTRACT ADMINISTRATOR

Each party appoints the following persons, or their duly authorized designees, as the only persons empowered to make commitments on behalf of their respective organization to effect changes to any portion of this Agreement.

For JMA:

Name:	Yolanda Morgan
Title:	Subcontracts Manager
Address:	600 Maryland Ave, SW, Suite 400 E Washington, D.C. 20024

For Subcontractor:

Name:	Samuel N. Trotman
Title:	President
Address:	P.O. Box 23421 Washington, D.C. 20026

ARTICLE 1.8 TECHNICAL SURVEILLANCE AND DIRECTION

Each party appoints the following persons, or their duly authorized designees, to handle technical surveillance and direction relating to this Agreement:

For JMA:

Name:	Avis Dillard-Bullock
Title:	Sr. Vice President Program Services
Address:	600 Maryland Ave., SW, Suite 400 E Washington, D.C. 20024

For Subcontractor:

Name:	Samuel N. Trotman
Title:	President
Address:	P.O. Box 23421 Washington, D.C. 20026

ARTICLE 1.9 LIMITATION OF OBLIGATION

Subcontractor may not exceed the ceiling price established in this Subcontract to cover performance of this Agreement through the end of the Term.

ARTICLE 1.10 INCREMENTAL FUNDING

The amount available for payment for this incrementally funded contract is \$865,900.40. The limitation of Funds clause, FAR 52.232-22, applies to the amount allotted to cover the estimated costs.

ARTICLE 1.11 INVOICING AND PAYMENT

- 1) Subcontractor must submit to JMA invoices by email to invoices@jma-solutions.com and the PM or by mail. Subcontractor is responsible for ensuring that JMA receives Subcontractor's invoices on or before the fifth of each month during the Term.
- 2) Subcontractor's invoice must include, at a minimum a) invoice date; b) invoice number; c) Agreement number; d) invoice period; e) Agreement value and funding; f) hours and cost, broken out by task and by individual and Labor Category with the current period hours and costs, and cumulative hours and costs; g) Subcontractor's written certification that the invoice is correct and that to the best of Subcontractor's knowledge and belief, all services/supplies shown in the invoice were performed, delivered, accepted or incorporated into items to be delivered; h) Subcontractor's written certification that all costs in the invoice are current, complete and accurate; and i) a dated signature by Subcontractor's duly authorized agent.

- 3) Subcontractor must attach to each invoice time sheets for the period of that invoice. If JMA discovers a discrepancy in a time sheet, JMA may reject the invoice and require Subcontractor to correct and resubmit the time sheet. Subcontractor must attach documentation to support actual costs incurred in accordance with the Government Travel Policy and Joint Travel Regulations. Subcontractor must submit travel expense reports with original receipts (and boarding passes for each flight) for all expenditures except per diem, and will include on each receipt Subcontractor's name, date paid, amount and the service rendered.
- 4) The JMA Subcontract Administrator identified in Article 1.7 and the PM will review and must approve all Subcontractor invoices.
- 5) After approving a Subcontractor invoice, JMA will pay to Subcontractor the uncontested amount of that invoice, at the established Time and Material rate established by labor category, within ten days of receiving payment from the Client for that amount. JMA may set off from any amount payable to Subcontractor any amount that Subcontractor owes to JMA. JMA will not pay to Subcontractor any amount in excess of the ceiling price.

ARTICLE 1.12 REPORTING REQUIREMENTS

Subcontractor must provide to monthlyreports@jma-solutions.com and to the PM, a monthly status report on or before the first of each month for all Subcontractor activity performed during the preceding month. The PM will provide Subcontractor with an appropriate template that will specify Subcontractor activity accomplished during the previous month and activities planned for the next month. JMA may also require Subcontractor, if the Client requires, to submit a weekly tasking summary to the PM.

ARTICLE 1.13 TECHNICAL DATA AND INFORMATION

Subcontractor must deliver to the PM all technical data and information ("Data") in accordance with the SOW. JMA will have ten business days to review the submitted Data and to provide comments to Subcontractor. If Subcontractor does not receive JMA comments 11 business days after JMA received the Data, Subcontractor may deem JMA to have approved that Data. If JMA provides comments to Subcontractor, Subcontractor must revise and resubmit the Data within 30 days of JMA's comments.

ARTICLE 1.14 FEDERAL HOLIDAYS

JMA Solutions observes all Federal Holidays listed below:

- New Year's Day
- Martin Luther King, Jr.
- President's Day
- Memorial Day
- Independence Day
- Labor Day
- Columbus Day
- Veterans Day
- Thanksgiving Day
- Christmas Day

Subcontractor will not, without the prior written authorization from JMA Solutions by the Contracting Officer Representative ("COR") and the Contracting Officer ("CO") 1) perform work on any Federal holiday; or 2) perform telework if the Government closes during inclement weather.

SUBCONTRACT AGREEMENT
PART 2 – GENERAL PROVISIONS

ARTICLE 2.1 PRIORITY RATING FOR NATIONAL DEFENSE USE

If this Agreement is rated under the Defense priorities and Allocations System (DPAS) 15 CF 350, as indicated on the front page of this Agreement, this Agreement must follow all the requirements of that regulation.

ARTICLE 2.2 CONFIDENTIALITY AND NONDISCLOSURE

- 1) Each Party will treat all information under this Agreement, in writing or orally, marked as confidential or unmarked, as confidential ("Confidential Information"). Confidential Information does not include information that a Party can show a) was publicly-known or already known before disclosed; b) received from a third party without a breach of that party's confidentiality obligation or other legal violation; c) independently developed without use of or reference to the Confidential Information; or d) approved in writing for release.
- 2) The Parties agree to 1) use Confidential Information only to perform under this Agreement; b) not copy the Confidential Information; c) restrict access to the Confidential Information to only those directly participating in the performance of this Agreement; 4) not produce derivative works based on the Confidential Information; 5) not reverse engineer, disassemble or decompile any tangible objects that embody the Confidential Information; 6) Receiving Party shall protect the disclosed Confidential Information by using the same degree of care, but no less than a reasonable degree of care, that the Receiving Party uses to protect its own confidential information of a like nature; and 7) return or destroy, at the requests of the Disclosing Party, all originals and copies of Confidential Information. This obligation survives for three years after Agreement termination or expiration.

ARTICLE 2.3 PRESERVATION, PACKING, PACKAGING, AND MARKING

Subcontractor must package, pack and mail or deliver all deliverables under this Agreement utilizing standard commercial practices sufficient to assure that those deliverables arrive at destination safely and undamaged.

ARTICLE 2.4 INSPECTION AND ACCEPTANCE OF DELIVERABLES

- 1) JMA will inspect Subcontractor's work to determine whether that work complies with the SOW. Subcontractor will facilitate JMA's inspection and tests.
- 2) If the Client is the U.S. Government or any state or local government, JMA's acceptance of Subcontractor's work occurs when Client successfully completes testing and accepts the work.
- 3) In all other instances, JMA's acceptance of Subcontractor's work occurs when JMA's Technical Representative successfully completes inspection and testing and accepts the work.

ARTICLE 2.5 RISK OF LOSS AND DAMAGE

Unless this Agreement specifically provides otherwise, JMA gets title to all deliverables under this Agreement on final acceptance, regardless of when or where JMA takes physical possession of those articles.

ARTICLE 2.6 WARRANTY

- 1) Subcontractor warrants that it has all rights necessary to fulfill the requirements of this Agreement, and that Subcontractor, its employees and its lower-tier subcontractors are fully qualified to perform under this Agreement.
- 2) Subcontractor warrants that all Subcontractor services performed under this Agreement will be performed to the highest professional standards.
- 3) Subcontractor warrants that a) all articles that Subcontractor furnishes will be free from defects in workmanship and materials; b) all articles, services and other deliverables that Subcontractor furnishes will comply with the SOW and specifications contained in all accompanying documentation, regardless of any prior course of performance or dealing between JMA and Subcontractor; and c) where Subcontractor's work includes or requires design by Subcontractor, that design will be free from defects.
- 4) The foregoing warranties a) survive JMA's acceptance of and payment for Subcontractor's articles, services and deliverables; b) inure to Client's benefit; and c) are provided by Subcontractor in lieu of all other warranties, express or implied, including without limitation a warranty of merchantability or fitness for a particular purpose.

ARTICLE 2.7 ACCESS TO RECORDS

Subcontractor agrees to provide to Client or Client's representative, access, at any time and without prior notice, to files, records, books and programs related to this Agreement to substantiate the accuracy of hours and dollars billed by Subcontractor and work performed.

ARTICLE 2.8 SUBCONTRACTOR NOTICE REGARDING DELAYS

If Subcontractor, for any reason, anticipates or encounters difficulty in meeting Agreement performance requirements, complying with Agreement delivery schedule or dates, or becomes aware that any actual or potential situation is delaying or threatens to delay the timely performance of this Agreement, Subcontractor must immediately notify the JMA Subcontractor Administrator in writing, giving pertinent details. Subcontractor's notification is informational only and does not mean that JMA waives any delivery schedule or date or any of JMA's rights or remedies.

ARTICLE 2.9 TERMINATION

- 1) JMA may, with notice to Subcontractor, immediately terminate this Agreement if a) Client terminates the Prime Contract; b) Client's funding is lost or depleted; c) Client changes the scope of the Prime Contract; d) Client directs JMA to terminate this Agreement; d) Subcontractor defaults in an obligation under this Agreement and fails to cure that default within seven days of receiving JMA's notice of that default; e) Subcontractor ceases to conduct its operations in the

normal course of business; e) Subcontractor becomes insolvent, enters into or has filed against it a petition, arrangement or proceeding seeking an order for relief under U.S. bankruptcy laws, has a receivership appointed for any of Subcontractor's assets, makes an assignment for the benefit of creditors, readjusts a debt, or dissolves or liquidates.

- 2) JMA will include on all notices of termination the basis for termination and the date on which the termination is effective.
- 3) On termination or expiration of this Agreement for any reason, and except as JMA otherwise directs, Subcontractor must a) stop work under this Agreement on the date and to the extent specified in the notice of termination; b) terminate all orders and subcontracts to the extent that they relate to the performance of any work terminated in the notice of termination; and c) transfer to JMA all work in progress under this Agreement.
- 4) JMA payments to Subcontractor, if any, in the event of termination will be made in accordance with the FAR termination provision provided in Part 3.0, Government Provisions.

ARTICLE 2.10 INDEMNITY

- 1) Each party ("Indemnifying Party") will indemnify and defend the other party, its officers, agents and employees (each an "Indemnified Party") from and against all claims and liability, loss, expenses, suits damages, judgments, demands and costs (including reasonable legal fees and expenses) related to third party claims arising out of the Indemnifying Party's a) acts or omissions; b) breach of this Agreement; c) untrue representations or warranties under this Agreement; d) actions causing injury or death to persons, loss of or damage to property, or fines and penalties; e) infringement or violation of any third party's intellectual property rights; or d) false claims made. This indemnification obligation does not arise if the liability, loss, expenses, suits damages, judgments, demands or costs are attributable to the Indemnified Party's gross negligence or willful misconduct. This Section survives Agreement termination
- 2) The Indemnifying Party must defend and settle at its sole expense all suits or proceedings arising out of its indemnification obligation under this Agreement if the Indemnified Party a) gives the Indemnifying party prompt notice of the claim or suit triggering the indemnification obligation; and b) provides to the Indemnifying Party necessary information, reasonable assistance and the sole authority to defend or settle such claim or suit.
- 3) If Subcontractor provides goods or services under this Agreement, including without limitation software and all forms of written materials, that become the subject of a claim of infringement or violation of a third party's proprietary rights, Subcontractor must, at its own expense a) use best efforts to procure for JMA the right to continue use and, if authorized under this Subcontract, distribution of the infringing goods or services; b) take immediate steps to make the goods or services non-infringing; or c) replace those goods and services with equivalent, non-infringing counterparts.

ARTICLE 2.11 CLAIMS RELATED TO GOVERNMENT PRIME CONTRACTS

If the Client's contracting officer decides on a claim relating to the subject of the Agreement, that decision will be binding on Subcontractor with respect to that subject. If that decision results in the Client not paying JMA or demanding that JMA refund or credit the Client, JMA will request that Subcontractor return to JMA any related amount that JMA has reimbursed or paid Subcontractor. JMA's

maximum liability for any matter related to this Agreement which was then the subject of a JMA claim against the Client under the Prime Contract will be the amount of JMA's recovery from the Client for that claim.

ARTICLE 2.12 DISPUTES

1) Disputes under this Agreement

- a) The parties will attempt to resolve dispute arising under or related to this Agreement by prompt, good faith mutual settlement. If this fails, the parties will submit the dispute to their own senior level executive who, within ten business days, will meet and in good faith attempt to negotiate a resolution of the dispute. If the dispute is not resolved at this level within ten business days, the parties will submit the dispute to arbitration pursuant to the Commercial Rules of the American Arbitration Association before an arbitrator to be selected by JMA and approved by Subcontractor. This arbitration will be held in the District of Columbia and the arbitrator's decision will be final and conclusive on the parties. The parties may enter the award rendered by the arbitrator to any court of competent jurisdiction. Except as otherwise specifically provided in this subparagraph, neither party may institute any action in a court if that party should have first resolved that action pursuant to this subparagraph.
- b) Until a dispute under this Agreement is resolved completely (including all challenges, appeals and parallel proceedings), Subcontractor must continue to perform completely and diligently under this Agreement.

2) Disputes under the Prime Contract

- a) Subcontractor acknowledges that the Prime Contract includes the disputes clause at FAR 52.233-1 ("Disputes Clause"), pursuant to which JMA may pursue certain procedures if there is a dispute between the Client's Contracting Officer and JMA about questions of law or fact relating to or arising under the Prime Contract. The Contracting Officer's decision ("Final Decision") under the Prime Contract relating to this Agreement or to Subcontractor's performance under this Agreement is binding on Subcontractor. JMA may appeal the Final Decision and will notify Subcontractor of JMA's intention to appeal within ten business days of receiving the Final Decision.
- b) Until a dispute under the Prime Contract that relates to this Agreement or Subcontractor's performance under this Agreement, Subcontractor must continue to perform completely and diligently under this Agreement and comply with the final decision of the Contracting Officer under the Prime Contract, subject to the appeal rights described below.
- c) If JMA appeals a Final Decision under the Disputes Clause of the Prime Contract, Subcontractor must assist JMA with that appeal, including, but not limited to, providing JMA access to Subcontractor's relevant non-privileged documents and personnel.
- d) If JMA does not appeal a Final Decision, JMA will notify Subcontractor of JMA's decision within 15 calendar days of JMA's receiving the Final Decision. Subcontractor may, within 15 calendar days of receiving JMA's notice, notify JMA in writing that Subcontractor intends to appeal the decision (before a Board of Contract Appeals or Federal Court) and JMA will grant Subcontractor an indirect right to appeal the Final Decision in JMA's name under the Disputes

Clause of the Prime Contract. Subcontractor will 1) pay for and be solely responsible to prosecute that appeal; 2) inform JMA about the appeal's progress; 3) furnish JMA with copies of all pleadings and non-privileged correspondence files, sent or received in connection with the appeal; 4) provide any and all certificates required by the Contract Disputes Act of 1978, 41 U.S.C. 601 et. Seq. and any and all relevant information that JMA reasonably requires to verify, support or confirm such certifications; and 5) be bound by the decisions of the Board of Contract Appeals or Federal Court and subject to any further appeal rights. JMA will assist Subcontractor by providing documents and information that Subcontractor reasonably requests for the appeal.

ARTICLE 2.13 NOTICES TO JMA OF DELAYS

Subcontractor must notify JMA, immediately and in writing with details, if Subcontractor is or anticipates having difficulties meeting Agreement requirements or delivery schedule, or if there is an actual or potential situation that is delaying or threatening to delay Subcontractor's timely Agreement performance. Subcontractor's notification is informational only and may not be construed as JMA's waiver of any Agreement requirement or delivery schedule or of any of JMA's rights or remedies.

ARTICLE 2.14 HIRING OF CONTRACTOR/SUBCONTRACTOR EMPLOYEES

During the Term and for a period of six months after Agreement termination or expiration, each party will not, without the prior written consent of the other party, solicit for employment the other party's employees assigned to work on this Agreement or the Prime Contract. A party's employee may, however, independently seek employment with the other party for work on other projects.

ARTICLE 2.15 MODIFICATIONS

This Agreement may only be changed in writing signed by both parties.

ARTICLE 2.16 BUSINESS ARRANGEMENT

This Agreement does not create a joint venture, partnership, or agency relationship or other form of business arrangement between the parties and neither party may, except as specifically provided in this Agreement, bind the other party. Each party remains an independent contractor exclusively responsible for its own employees. This Agreement does not provide for any sharing of losses arising out of the respective efforts of the parties.

ARTICLE 2.17 ASSIGNMENT

Neither party may assign this Subcontract, in whole or in part, without the prior written permission of the other party.

ARTICLE 2.18 PUBLIC RELEASES

Subcontractor may not, without JMA's prior written consent, issue a news release, public announcement or advertising pertaining to this Agreement.

ARTICLE 2.19 COMMUNICATIONS WITH CLIENT

Subcontractor may not discuss with Client anything about disputes between JMA and Subcontractor or about any other matter that may adversely impact JMA's relations with the Client.

ARTICLE 2.20 NOTICES

Unless specifically allowed in another form, notices and communications required by this Agreement must be in writing and will be considered sufficiently given if a party personally delivers or sends the notice to the other by confirmed email, confirmed overnight delivery, or by first class mail, return receipt requested, postage prepaid and addressed to the other party at then-current address or facsimile number shown in Article I.7, "Subcontractor Administrator".

ARTICLE 2.21 SEVERABILITY

If a court or arbitrator determines that a provision of this Agreement is void or unenforceable by force or operation of law, the other provisions will remain valid and enforceable.

ARTICLE 2.22 FORCE MAJEURE

- 1) A party will not be liable to the other if circumstances beyond that party's reasonable control ("Force Majeure Event") prevent that party from performing under this Agreement provide the party so affected notifies the other party promptly after the Force Majeure Event occurs and resumes performing promptly when the Force Majeure Event ends.
- 2) If a Force Majeure Event prevents a party's performance for more than 30 calendar days, or if the affected party cannot assure the other party that the affected party will resume performance within 30 days after the Force Majeure Event, the unaffected party may terminate this Agreement, in whole or in part, for default under Article 2.9, Termination.

ARTICLE 2.23 GOVERNMENT FURNISHED PROPERTY/EQUIPMENT

- 1) The Client retains title to all "Government Property" or equipment furnished to Subcontractor. Subcontractor assumes the risk of loss or damage to the Government Property or equipment when Subcontractor receives that Government Property or equipment and does not shift that risk until Subcontractor returns the Government Property or equipment to the Client.
- 2) Subcontractor must get JMA's prior written approval to acquire property or materials as defined in FAR 45.5. Subcontractor does not need JMA's prior approval to acquire materials that may be consumed in the performance of this Agreement (i.e., special products or materials used in meeting deliverable requirements and expended on delivery to the Client), but Subcontractor must track those materials in accordance with the receipt and issue guideline in FAR 45.5.

ARTICLE 2.24 INVENTIONS

- 1) If the employees of a party, during the Term, exclusively conceive of or first reduce to practice a patentable invention ("Invention") in connection with this Subcontract, that party will hold title to that Invention and to any patent issuing on that Invention, subject to the provisions of the Patent Rights clause in the Prime Contract.
- 2) If both party's employees, during the Term, make the Invention, each party will have an equal, undivided one-half interest in and to that Invention, as well as in and to patent applications and patents on that Invention in all countries, subject to Patent Rights clause of the Prime Contract. In this case, JMA will have the first right of election to file patent applications on the Invention in any country, and Subcontractor will have the second rights of election, subject to the provisions of the Patent Rights clause of the Prime Contract. JMA will notify Subcontractor of its election at the earliest practicable time in order to permit Subcontractor to notify the Client within the waiver time provided in the Patent Rights clause in the Prime Contract.

ARTICLE 2.25 SURVIVABILITY

Unless otherwise specifically marked as surviving Agreement expiration or termination, Articles 2.2, 2.6, 2.9, 2.10, 2.11, 2.12, 2.18, 2.19 and 3.0 survive Agreement expiration or termination.

ARTICLE 2.26 GOVERNING LAW

This Agreement is governed by United States Government laws, regulations and administrative acts, now or later in effect. The laws of the District of Columbia govern those provisions not governed by United States Government.

ARTICLE 2.27 ORDER OF PRECEDENCE

Inconsistencies in this Agreement, if any, will be resolved by giving precedence in the following order:

- A. Part 1.0 Schedule
- B. Part 4.0 Special Provisions
- C. Part 2.0 General Provisions
- D. Part 3.0 Government Provisions
- E. Part 5.0 Statement of Work
- F. Part 6.0 Period of Performance
- G. Part 7.0 Time and Material Rates and Labor Categories

PART 3.0

GOVERNMENT PROVISIONS

The following clauses ("Clauses") "flow down" from the Prime Contract and are incorporated by reference with the same force and effect as if they were given in full text. These Clauses apply to Subcontractor as a subcontractor to JMA and Subcontractor acknowledges that JMA's obligations to the Client in these Clauses must also be considered as obligations of Subcontractor to JMA. However, disputes between JMA and Subcontractor will be handled under the Disputes clause of this Agreement and not the disputes clause of the Prime Contract.

Where necessary to make the content of these Clauses applicable to this Agreement "Client" means JMA, "Contractor" means Subcontractor, "Contract" means this Agreement, "Contracting Officer" means JMA's contractual representative, except in those instances where regulations or sense of the clause dictate otherwise. The Client reserves exclusive the rights to inspect and audit Subcontractor's books and records.

Unless the specific Clause referenced below is mandatory by law, statute, or regulation, this Agreement controls if there is any inconsistency between this Agreement and the referenced Clauses.

3.2.2.3-33	Order of Precedence (3/2009)
3.2.2.7-6	Protecting the Government's Interest when Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment (4/2011)
3.2.4-31	Evaluation of Options (4/1996)
3.2.5-1	Officials Not to Benefit (4/1996)
3.2.5-3	Gratuities and Gifts (1/1999)
3.2.5-4	Contingent Fees (10/1996)
3.2.5-5	Anti-Kickback Procedures (10/2010)
3.2.5-7	Disclosure Regarding Payments to Influence Certain Federal Transactions (10/2010)
3.2.5-8	Whistleblower Protection for Contractor Employees (4/1996)
3.3.1-10	Availability of Funds (4/1996)
3.3.1-5	Payments under Time-and-Materials and Labor-Hour Contracts (4/2001)
3.3.1-10	Availability of Funds (4/1996)
3.3.1-14	Limitation of Funds (4/1996)
3.3.1-15	Assignment of Claims (4/1996)
3.3.1-17	Prompt Payment (4/2012)
3.3.2-1	FAA Cost Principles (1/2016)

3.4.1-11	Insurance--Liability to Third Persons (6/1999)
3.5-13	Rights in Data--General (10/2014)
3.6.1-12	Notice of Service Disabled Veteran Owned Small Business Set-Aside (10/ 2011)
3.6.2-8	Affirmative Action Compliance (4/1996)
3.6.2-9	Equal Opportunity (8/1998)
3.6.2-12	Affirmative Action for Special Disabled and Vietnam Era Veterans (1/2011)
3.6.2-13	Affirmative Action for Workers with Disabilities (10/2010)
3.6.2-14	Employment Reports on Special Disabled Veterans and Veterans of Vietnam Era (1/2011)
3.6.2-28	Service Contract Act of 1965, as Amended (10/2014)
3.6.2-39	Trafficking in Persons (10/2015)
3.6.3-16	Drug Free Workplace (3/2009)
3.6.4-2	Buy American Act--Supplies (7/1996)
3.6.4-10	Restrictions on Certain Foreign Purchases (8/2010)
3.8.2-11	Continuity of Services (10/2008)
3.9.1-3	Protest (10/2011)
3.10.1-7	Bankruptcy (4/1996)
3.10.1-9	Stop-Work Order (10/1996)
3.10.1-14	Changes--Time and Materials or Labor Hours (4/1996)
3.10.6-3/alt4	Termination (Cost-Reimbursement) Alternate IV (1/2015)
3.10.6-7	Excusable Delays (10/1996)

PART 4.0

SPECIAL PROVISIONS

The special provisions below “flow down” from the Prime Contract and are incorporated by reference with the same force and effect as if they were given in full text. These special provisions apply to Subcontractor as a subcontractor to JMA and Subcontractor acknowledges that JMA's obligations to the Client in these special provisions must also be considered as obligations of Subcontractor to JMA. However, disputes between JMA and Subcontractor will be handled under the Disputes clause of this Agreement and not the disputes clause of the Prime Contract.

Where necessary to make the content of these special provisions applicable to this Agreement, “Client” means JMA, “Contractor” means Subcontractor, “Contract” means this Agreement, “Contracting Officer” means JMA’s contractual representative, except in those instances where regulations or sense of the clause dictate otherwise. The Client reserves exclusive the rights to inspect and audit Subcontractor's books and records.

Unless the specific special provision referenced below is mandatory by law, statute, or regulation, this Agreement controls if there is any inconsistency between this Agreement and the referenced special provision.

The following special provisions apply to this Subcontract:

3.2.4-35	Option to Extend the Term of the Contract (4/1996)
3.1.7-6	Disclosure of Certain Employee Relationships (7/2009)
3.9.1-1	Contract Disputes (10/2011)
3.10.1-25	Novation and Change-of-Name Agreements (10/2007)
3.13-5	Seat Belt Use by Contractor Employees (10/2001)
3.14-2	Contractor Personnel Suitability Requirements (7/2016)
3.14-3	Foreign Nationals as Contractor Employees (4/2014)
3.14-4	Access to FAA Systems and Government Issued Property (11/2016)
3.14-5	Sensitive Unclassified Information (SUI) (7/2013)

PART 5.0
STATEMENT OF WORK FOR
FAA System Wide Information Management (SWIM) Program Office
(Segment S2B IAM)
Support Services To
JMA SOLUTIONS

5.0 TASK STATEMENT

5.1 Background

The Federal Aviation Administration (FAA) System Wide Information Management (SWIM) Program is a National Airspace System (NAS) advanced Information Technology (IT) infrastructure program that supports Next Generation Air Transportation System (NextGen) goals. The program's mission is to transform the NAS into an agile information-centric system by creating a common comprehensive framework – including Service Oriented Architecture (SOA) technology, processes, and governance – that allows authorized users to share data within and outside the NAS.

SWIM will provide policies, standards, and core services infrastructure to support data management, based on existing systems and networks to the extent practicable, and proven technologies to reduce cost and risk.

SWIM is being deployed in segments. In each segment SWIM Core Services will be added to support the information needs associated with that segment. SWIM core services will enable other NAS programs to request and receive information when they need it, subscribe for automatic data receipt, and publish information and services as appropriate.

5.2 Scope of Work

Scheduling Support

The contractor must provide Scheduling Support. At a minimum, the Contractor must:

- Provide scheduling support on all SWIM Segment 2A and Segment 2B programs to include schedule development, maintenance, risk analysis, posting scheduling updates to SWIM KSN schedule section of the Program Control page, maintaining schedule history, and integration into other schedules such as the SWIM Network Logic Schedule (NLS), SWIM Segment 2B Integrated Master Schedule (IMS), and the NextGen Integrated Master Schedule (IMS).
- Capture and integrate schedule completion status and metrics and provide for use by the EVM system.
- Participate in SWUM segment project reviews.

- Provide schedule related support for the following:
 - Inspector General (IG) audits;
 - Government Accountability Office (GAO) audits;
 - Integrated Baseline Review/s (IBR);
 - Post Implementation Review/s (PIR);
 - Investment Planning and Analysis (IP&A)/Joint Resources Council (JRC) activities;
 - Office of Management and Budget (OMB) Financial activities; and
 - Ad Hoc schedules.

Administration and Programmatic Support

The Contractor must provide Administrative and Programmatic Support. At minimum, the Contractor must:

- Track its performance and report it in the monthly Program Status Report.
- Attend SWIM PO internal meetings and reviews conducted to monitor program performance and to discuss status of actions, schedule, programmatic issues, and technical issues.
- Support conferences and other meetings as requested by the SWIM PO.

Knowledge Service Network and SWIM Website Support

The Contractor must provide Knowledge Services Network (KSN) and SWIM Website Support. At a minimum, the Contractor must:

- Provide KSN website development and maintenance to support SWIM program management activities.
- Review and assist in the implementation of changes and provide support documentation and management of all action items related to best practices. This consists of reviewing, making recommendations, preparing documents and schedules, providing production services, and disseminating and monitoring program information between various participating organizations.
- Assist in developing workflows, dashboards, surveys and other SharePoint/KSN related tasking.
- Support Outreach activities such as conferences to attract small businesses, supplying outreach conference material such as brochures and flyers and development of newsletters to support communications.
- Assist in developing and reviewing KSN related information in Communications and Outreach Plans and other SWIM documents.
- Support outreach by reviewing and commenting on documents posted for team review.
- Participate in various working groups, provide minutes for various team meetings and, conferences and assist in developing schedules, reporting changes and actions items.
- Provide SWIM website maintenance to support SWIM program management activities.

- Assist system users, other internal users, external agencies and organizations in interfacing with the SWIM KSN and SWIM website.
- Assist with data management, configuration management, quality assurance, and program management activities.
- Assist with document retrieval and posting deliverables on the SWIM KSN.

System Engineering Support

The Contractor must provide System Engineering Support. At minimum, the Contractor must:

- Support system/subsystem level requirements definition and analysis.
- Identify and review functional definitions and designs for system hardware and software architecture.
- Assist with defining system performance and design constraints.
- Develop and/or review specifications, drawings and product descriptive data.
- Provide technical support of customer requirements.
- Participate in technical information meetings and management reviews.
- Perform life cycle engineering assessments.
- Conduct system security life cycle engineering assessments.
- Perform service oriented architecture (SOA) design.
- Participate in test events as a qualified observer.
- Assist with site preparation activities.
- Review system documentation.
- Develop technical presentations.
- Assist with risk management, project reporting and documentation.
- Provide requirements management, functional analysis, interface management, specialty engineering, integrity analysis, configuration management and systems engineering process management.
- Assist in integrated technical planning, lifecycle engineering and validation and verification to support the implementation of the capabilities.

5.3 Data Deliverables

Contract deliverables must be provided IAW the Statement of Work. All deliverables must be delivered F.O.B. Destination, unless specified otherwise by the Contracting Officer.

No.	Title	Description/Data Requirements	Due / Frequency
0004	Segment 2A & 2B Integrated Master Schedule (IMS)	Detailed schedules for both Segments 2A & 2B.	As requested by the COR
0005	NextGen Integrated Master Schedule (IMS).	Detailed schedules for both Segments 2A & 2B.	As requested by the COR
0006	Segment 2A & 2B Critical Path Analysis	Update the respective Segment 2A & 2B schedules (IAM, NCR, STDDS, SFDPS & ESM). Prepare critical path analysis, GANTT Charts, & 30 day/60 day status reports.	Last Friday of the Month
0007	SWIM Terminal Data Distribution System Schedule	Develop and maintain all phases of the SWIM Terminal Data Distribution System schedule.	Last Friday of the Month

PART 6.0

PERIOD OF PERFORMANCE

Base Period: 08 June 2017 – 07 June 2018

Option Period 1: 08 June 2018 – 07 June 2019

Option Period 2: 08 June 2019 – 07 June 2020

Option Period 3: 08 June 2020 – 07 June 2021

PART 7.0
TIME AND MATERIAL RATES AND LABOR CATEGORIES

One base period of 1 year and 3 one year option periods.

Period of Performance	Labor Category	POP Hours	Labor Rate	Total Labor
Base Period	Program Analyst II	1920	\$107.39	\$206,188.80
	(2) Program Analyst I	3840	\$121.49	\$466,521.60
	Program Management Specialist	1430	\$133.00	\$190,190.00
	Travel			\$3,000.00
	Total			\$865,900.40
Option Period 1	Program Analyst II	1920	\$109.00	\$209,281.63
	(2) Program Analyst I	1920	\$123.31	\$473,519.42
	Program Management Specialist	1430	\$135.00	\$193,042.85
	Travel			\$3,000.00
	Total			\$878,843.91
Option Period 2	Program Analyst II	1920	\$110.64	\$212,420.86
	(2) Program Analyst I	1920	\$125.16	\$480,622.22
	Program Management Specialist	1430	\$137.02	\$195,938.49
	Travel			\$3,000.00
	Total			\$891,981.56

Option Period 3	Program Analyst II	1920	\$112.30	\$215,607.17
	(2) Program Analyst I	1920	\$127.04	\$487,831.55
	Program Management Specialist	1430	\$139.08	\$198,877.57
	Travel			\$3,000.00
			Total	\$905,316.29
			Contract Total:	\$3,542,042.16